

Uniform Rules of Court (High Court) — Overview

UNIFORM RULES OF COURT — PRACTITIONER OVERVIEW (SA)

Rule 6 — Applications

Application proceedings are brought on notice of motion supported by affidavit. Opposed applications follow timelines for answering and replying affidavits. Urgent applications engage Rule 6(12).

Rule 17–18 — Action procedure

Summons, appearance to defend, plea, replication. Particulars of claim must comply with facta probanda requirements; technical exceptions under Rule 23.

Rule 35 — Discovery

Parties discover documents relating to any matter in question. Privilege (legal advice, litigation) may be claimed. Failure to discover has serious consequences.

Rule 36–37 — Expert notices and pre-trial

Expert summaries, joint minutes, and pre-trial conferences to narrow issues.

Rule 53 — Reviews

Reviews of administrative action / lower court proceedings on the record, with reasons.

Practice directives

Each Division (e.g. Gauteng, Western Cape) issues practice directives on CaseLines/Court Online, roll allocation, and opposed motion court procedure. Always check the local directive.

NOTE: Educational overview — consult the official Uniform Rules and current practice directives.

— End of curated extract. Verify official text before reliance. —